

The Board of Education of the Brecksville-Broadview Heights City School District met in regular session at ___ p.m. on April 22, 2020 at the Education Center at the BOE Administrative Building, 6638 Mill Road, Brecksville, Ohio 44141 with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto and/or notice requirements of HB 197 were complied with for the meeting.

_____ moved the adoption of the following resolution:

RESOLUTION TO CONDUCT BOARD MEETINGS VIA ELECTRONIC TECHNOLOGY DURING THE
PERIOD OF EMERGENCY DECLARED BY EXECUTIVE ORDER 2020-01D

WHEREAS, on March 9, 2020 the Governor of the State of Ohio issued Executive Order 2020-01D ("Order") declaring a state of emergency for the entire State to protect the well-being of the citizens of Ohio from the dangerous effects of COVID-19; and

WHEREAS, on March 27, 2020 the Governor of the State of Ohio signed Emergency House Bill 197 to provide relief to Ohioans during the COVID-19 pandemic, which among other things, permits a local board of education to hold and attend meetings and conduct and attend hearings by means of teleconference, video conference, or any other similar electronic technology during the during the period of emergency declared by the above-referenced Order, issued on March 9, 2020, but not beyond December 1, 2020, unless the period of emergency is extended beyond that date; and

WHEREAS, members of a local board of education who attend meetings or hearings by means of teleconference, video conference, or any similar electronic technology shall be considered present, shall be permitted to vote, and shall be counted for purposes of determining whether a quorum is present at the meeting or hearing, and any formal action taken shall have the same effect as if it had occurred during an open meeting or hearing of the public body; and

WHEREAS, pursuant to the Ohio Department of Health Director's March 22, 2020 Stay at Home Order and amended Order issued on April 2, 2020, public preK-12 schools are designated an essential business for the purposes of facilitating distance learning and shall ensure continued

operation, including performing essential government functions, provided that social distancing requirements and recommendations are maintained to the greatest extent possible; and

WHEREAS, the Board desires to continue operation of the school district and to attend meetings by electronic means in order to carry out essential government functions pursuant to and in compliance with HB 197 and all other requirements set forth by Ohio's Open Meetings Act that are not in conflict with the provisions of HB 197.

NOW, THEREFORE, BE IT RESOLVED, by the Board of Education that after careful consideration and evaluation of the information before it:

Section 1. Pursuant to HB 197, the Board shall conduct its meetings either by a combination of in-person attendance, while maintaining social distancing, electronic or virtual attendance, or solely by electronic or virtual means for the duration of the declared emergency, but not beyond December 1, 2020, unless the period of emergency is extended beyond that date.

Section 2. The Board hereby suspends its policy 0169.1, Public Participation at Board Meetings, for any and all provisions regarding in-person public comment. This action does not prohibit public comment during Board meetings. Rather, public comment may be heard at the Board's discretion in accordance with the meeting notices provided by the Treasurer regarding public comment, and in accordance with the remaining portion of policy 0169.1 that is not in conflict with this resolution and/or such meeting notices.

Section 3. The Board hereby suspends relevant provisions of its policy 0100's definition of Voting, with regard to being physically present in order to have a member's vote officially recorded; policy 0162, Quorum, with regard to being present in person for purposes of quorum; policies 0166, Executive Session, and 0167, Voting, with regard to all in-person requirements; and relevant portions of its policy 0131, Legislative, with regard to being physically present; and any and all Board policies and procedures in conflict with the resolutions herein and/or HB 197 for purposes of compliance with Ohio's Open Meetings Act for the duration of the declared emergency, unless the period of emergency is extended beyond that date.

Section 4. The Board President, Superintendent, and/or Treasurer are authorized and directed to take all other such actions as are necessary or appropriate to accomplish the objectives of this Resolution.

Section 5. The Board finds and determines that all formal actions of this Board concerning and relating to the adoption of this Resolution were adopted in an electronic meeting of this Board in compliance with all legal requirements, including HB 197 and as permitted by Ohio law.

Section 6. This Resolution shall take effect and be in force from and after the earliest period allowed by law.

_____ seconded the motion and roll begin called upon the question of the adoption of the Resolution, the vote resulted as follows:

_____	_____
_____	_____

CERTIFICATE

The undersigned hereby certifies that the foregoing is a true and correct copy of the resolution adopted at a meeting held on April 22, 2020, together with a true and correct extract from the minutes of said meeting to the extent pertinent to consideration and adoption of said resolution.

Craig G. Yaniglos, Treasurer